

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

2021 JAN 25 PM 4:42

CLERK OF COURT

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IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER-KESTER)
)

V.)
)
)

NO. CV2016-422W

MATTHEW OLIVER REARDON

**DEFENDANT'S MOTION TO QUASH, SUPPRESS, AND SANCTION PETITIONER AND
PETITIONER'S LEGAL COUNCIL**

Comes now before the court Matthew Reardon, your confused, mentally anguished, and dumfounded Respondent/Defendant, and hereby moves this court to quash, suppress, and sanction the Petitioner and her legal counsel after their continued insistence through "grabbing at straws" after one failed attempt after another failed attempt to unfairly berate and overwhelm the defendant by continuing to go down additional avenues or "rabbit holes." Movant states before this court that this is precisely the case yet again and the motive and reasoning behind the latest move by petitioner and her council to Subpoena records from 4 law enforcement agencies should be abundantly clear to this court that the Petitioner and her council's soul goal at this point is to cause or create unnecessary delay in order to further harass and victimize the Movant on matters that the plaintiff and her council knowingly caused and/or played a significant part in creating. **There are several major issues at hand now that this court has been made complete aware of which include among others the Petitioner's Attorney knowingly defrauding this court as well as the defendant/respondent through filing a fraudulent petition in which the notarized affidavit was duplicated and used twice. The September 30th, 2020 Petition filed by the Petitioner is attested to August 26, 2020 which was the original petition filed. The Notary attested to the document from August 26, 2020 not September 30th, 2020. This is an incurable error, an error that cannot be characterized as a "Clerical Error" and one of profoundly serious nature because of the liability such careless and negligent actions pose on the notary public herself. Petitioner's Attorney even had the audacity to not even so much as issue a response in the 10-day window allotted for response further showing the willful and intentional efforts**

to “ride it out” and to take it further by poking and prodding in other areas of defendant’s life which not only was she not privy to nor did she have any reason to ascertain based on the original petition filed with this court. In both jurisdictions for which the plaintiff subpoenaed, there is currently ongoing legal matters both in defending and litigating erroneous retaliatory attacks on Movant whom was only seeking out assistance after the petitioner went to the extents she did in conspiring to falsely accuse the Movant of rape. Due to both matters being open and in litigation, Movant asserts that petitioner is not privy to such information, not now and quite possibly never. After all, was this cause not based on Petitioner’s ATTEMPT to reduce even further the Movant’s visitation with his minor child whom he has demonstrated. This court has an obligation to look out for the best interest of the minor child, and Movant asserts that he has sustained prejudicial treatment by this court counter to the obligation that a family court is expected to provide on normal circumstances because he is representing himself pro se, however Movant asserts his inability to afford outside council due to the extremely malice acts of the petitioner, her attorney, and certain individuals and government officials in Lafayette County.

Movant asserts that there are now multiple fatal errors now in play. **MRCP Rule 45 C (1) calls for a Subpoena to be executed on a witness personally. Rule 45 (c) (2) calls for the names of the PERSONS served. A staff member for petitioner’s attorney “SERVED” the subpoena for Olive Branch PD AND Desoto County Sheriffs Office via fax with no acknowledgement from any PERSON. Furthermore MRCP 45(d)(2)(a) states that the subpoena MUST give no less than 10 days notice to comply. All subpoenas issued by petitioner were issued on the 19th, thus less than 10 days before trial given that trial is on 1/28/2021, Therefore these subpoenas were improperly served and as such the contents of any discovery cannot be produced and used for trial purposes, and Movant hereby would demand that petitioner’s counsel destroy any and all information that may have stemmed from such subpoena, and Movant requests this court to order a stop to the production of such records due to privacy and confidentiality purposes as well as non-conforming to the established rules laid out in regards to service of a subpoenas. MRCP 45(D)(1)(A) states that upon timely motion, the court from which a subpoena was issued shall quash or modify a subpoena if it fails to allow reasonable time for compliance; or requires disclosure of privileged or protected matter. Movant states both**

of these are the case along with the purpose of the petitioner even stemming this is to harass and cause unnecessary delay. Finally, MRCP 45(f) lays out this courts power granted to sanction a party in order to curb abuse of such rules and Movant finds this is completely warranted given the other examples of the defrauding of this court and further society by the petitioner and her attorney. Movant gives the aforementioned as just reasons for this court to **QUASH, SUPPRESS, STRIKE, AND SANCTION the Petitioner and her legal counsel** for their knowingly unethical and unscrupulous actions in trying to further tear down an innocent man, father, patriot, and veteran whom for the entire time has clearly sought out equal protections of State and Federal Laws. **Movant would harshly object in anticipation to Petitioner's council asking for a continuance as this matter has been delayed for long enough keeping Movant from normal exercised visitation with his minor child for over a year.**

Movant has stated numerous times now in this particular cause that Petitioner has a history of making false reports, and that retaliation resulting from her being picked up on a warrant cut by Olive Branch Police Department stemmed what all signs show to be another "Witch-Hunt" of the respondent Combined with the "Systemic Kidnapping" of the Defendant's minor child for the past year that petitioner went in gross contempt of this court's visitation agreement. **Meanwhile, the Petitioner has continued to "bite the hand that feeds her" through the perpetuation of libelous, defaming, and dangerous lies that are now clearly insistent upon the initiation of additional proceedings outside of this court and movant states most certainly warrants a criminal investigation due to the continued commission of crimes which have been directed at the Movant. While this constitutional crisis stemmed from the petitioner and her council along with the assistance of certain other John and Jane Does to be listed, it is the bizarre handling of this matter by local agencies and even the courts that have exacerbated this issue to it now being one that quite frankly has grown to levels the Movant never imagined he would ever see. Not immediately rebuking and condemning this sort of behavior and allowing Petitioner to steadily play her guessing game in fishing for anything and everything to try to hang over the movants head now takes on the**

And that all of this was a conjoined effort to remove the liability off of Lafayette County, and slide the Mayor, Robyn Tannehill's most outspoken opponent/political adversary out of the way in order to suppress information and prevent electable issues and her mayoral run.

Where is the line drawn on the extent that this county, the state, and this court aids and abets the petitioner and in the commission of her crimes which have been clearly stated, or is it the fact that the county, the state, and this court is so far committed that it refuses to turn back no matter what the petitioner does and gets away with? Movant puts Lafayette county and the state of Mississippi on notice of it's grievous violations of not only Its own state constitution and laws, but Federal Laws through the intentional violation of 42 USC 1985, 42 USC 1983, and furthermore have flagrantly denied Movant the equal protections under State and Federal Laws after previous notices of violation have been issued by Movant in regards to the same criminal conduct involving knowingly false accusations alleged by the petitioner in this cause over the last three and a half years. It is blatantly clear to see the end goal is exactly what Movant has asserted since May of 2017. That Movant's child has been USED as a manipulation tool by her mother, her attorney/attorneys, Lafayette County, and most certainly Chancery Court and Circuit Court In order to steer and manipulate a desirable outcome which benefits the county and the minor child's mother, and fully deprives Movant, a Marine Corps Veteran, of his civil rights along with his due process rights, which have risen beyond that of a civil matter to the level of criminal conduct by acts of criminal conspiracy. Movant has continuously provided notice and sought out protections by Agencies and this court which have neglectfully gone unheard, unnoticed, and have not been acted upon despite undeniable evidence to back all claims. Movant completely objects, rejects, condemns, and rebukes the actions of the responsible parties and this court to the highest degree for flat out refusing to assess, read, and respond to any of the motions and evidence brought forward by the Movant which makes clear that the petitioner is in direct

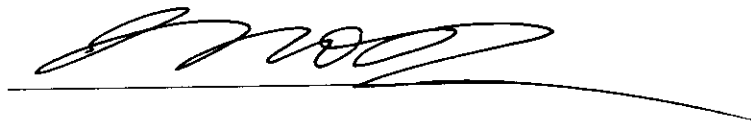
violation of perjury, criminal conspiracy, and worse. It is beyond time that arrests and indictments be made in this matter, and the Movant does not deserve be be further targeted and attacked. The Movant should be commended for standing firm and walking tall in the face of all adversity and evil in refusing to settle for anything less than justice prevailing against all parties whom played a material part in the undeserving life altering abuse and destruction that the movant has sustained.

WHEREFORE ALL PREMISES CONSIDERED

Movant prays that this court dismiss this cause stemmed by petitioner on 1/28/2021 and to issue an order ordering each agency to stand down from petitioner's subpoena due to them being invalid and due to the information sought. Movant wants to see his daughter unimpeded by petitioner and prays that this court direct some type of fitting punishment to her and her attorney for the grievous actions they have demonstrated in this entire matter. Movant reasserts his counter-claim in the amount of \$15,000 for time expended as well as mental anguish stemming.

Movant also prays for any additional relief be it special or general for which he may be entitled

Respectfully submitted this 25th Day of January 2021

A handwritten signature in black ink, appearing to read 'Matthew Reardon', is written over a horizontal line.

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